

An Act

ENROLLED SENATE
BILL NO. 843

By: Murdock of the Senate

and

Dobrinski and Newton of the
House

An Act relating to school district boards of education; amending 70 O.S. 2021, Sections 5-113 and 5-113.1, which relate to a prohibition on certain relationships between board members and school district employees; modifying statutory language; modifying exception to certain prohibition; updating statutory language; providing an effective date; and declaring an emergency.

SUBJECT: School district boards of education

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-113, is amended to read as follows:

Section 5-113. A. Except as otherwise provided in this section, no person shall be eligible to be a candidate for or serve on a board of education if the person is currently employed by the school district governed by that board of education or is related within the second degree by affinity or consanguinity to any other member of the board of education or to any employee of the school district governed by the board of education. The purpose of this section is both to prohibit persons who are related within the second degree by affinity or consanguinity from serving simultaneously on the same board of education of any school district of this state and to prohibit persons who are related within the second degree of consanguinity or affinity to an employee of a

school district from serving on the board of education governing the school district while such relative is employed except as otherwise provided in this section.

B. If the relationship is based on affinity, the prohibitions in this section shall not apply to prevent members of boards of education who are serving on September 1, 1995, from serving the term for which they were elected or from serving successive terms for which they may be elected, unless it is the member's spouse who is a member of the board of education or an employee of the school district~~7;~~ then such prohibitions shall apply.

C. The prohibitions set forth in this section shall not apply if:

1. The person related to the board member within the second degree of affinity or consanguinity is employed as a substitute teacher by the school district pursuant to the provisions of Section 6-105 of this title or as a temporary substitute support employee if the school district has an ~~Average Daily Membership~~ average daily membership (ADM) of less than five thousand (5,000); or

2. The school district has an ADM of less than ~~four hundred (400)~~ five hundred fifty (550), the board of education has adopted a policy providing for such candidate eligibility and the board member who is related within the second degree by affinity or consanguinity to any employee of the school district governed by the board of education complies with the provisions of subsection E of Section 5-113.1 of this title.

D. Any member of a board of education who violates the provisions of this section shall be subject to the penalties prescribed by Sections 485 and 486 of Title 21 of the Oklahoma Statutes.

SECTION 2. AMENDATORY 70 O.S. 2021, Section 5-113.1, is amended to read as follows:

Section 5-113.1. A. Except as otherwise provided in this section, no person may be employed or put under contract by a school district if that person is related to a member of the board of education of that school district within the second degree of

consanguinity or affinity. A teacher or employee already under contract to or otherwise employed by the school district at the time the relationship is established may continue in ~~said~~ such employment. Except as otherwise provided, a board member already serving at the time the relationship is established may serve out the term for which the member was elected but shall not be eligible to be a candidate for or serve successive terms of office for which the member may be elected.

B. The provisions of this section shall not prevent a board member from serving successive terms of office if otherwise eligible under the provision of Section 5-113 of this title. No member of the board of education who has resigned from the board before the term of the person has expired may be reappointed to the board to complete the remainder of the term if a teacher or employee related to the resigned member of the board within the second degree of consanguinity or affinity was put under contract or otherwise employed by the school district after the board member resigned.

C. The provisions of this section shall not prevent a person who is related to a member of the board of education within the second degree of consanguinity or affinity from being employed by the school district as a substitute teacher pursuant to the provisions of Section 6-105 of this title or as a temporary substitute support employee if the school district has an ~~Average Daily Membership~~ average daily membership (ADM) of less than five thousand (5,000).

D. The provisions of this section shall not prevent a person who is related to a member of the board of education within the second degree of consanguinity or affinity from being employed by the school district if the school district has an ~~Average Daily Membership~~ average daily membership (ADM) of less than ~~four hundred (400)~~ five hundred fifty (550) and the board of education has adopted a policy providing for such employment.

E. Any member of a board of education who is related to a teacher or other employee of the district within the second degree of consanguinity or affinity shall not attend or participate in any regular or executive session of the board held to consider any personnel matter or litigation relating to ~~said~~ such teacher or employee. The member may vote on collective bargaining agreements

or the renewal of contracts as a group if the vote is necessary to form a quorum of the board of education members. If more than one member of the board of education is related to a teacher or employee, only the minimum number of those members which is necessary to form a quorum shall be allowed to vote. Each board of education so affected shall adopt a written policy establishing procedures on when such a member may vote on the renewal of contracts or collective bargaining agreements.

F. Any member of a board of education who violates the provisions of this section shall be subject to the penalties prescribed by Sections 485 and 486 of Title 21 of the Oklahoma Statutes.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____